

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 16

Honorable Vincent I. Parrett, Presiding

191 North First Street, San Jose, CA 95113

Telephone: (408) 882-2270

September 11, 2026

9:00 and 9:01 A.M.

Unauthorized Recording of Court Proceedings will be Punished

ORAL ARGUMENT

If you are contesting the tentative ruling then by 4 PM today you must notify:

- (1) The Court by calling **(408) 808-6856**, and
- (2) The other side by phone or email that you will appear at the hearing to contest the tentative.

If you fail to notify the court and opposing side by 4 PM then no oral argument will be heard and the tentative ruling becomes the final ruling. (C.R.C. 3.1308(a)(1) & Local Rule 8.D.)

APPEARANCES

The Court encourages in-person appearances for all matters.

The Court discourages remote appearances.

The Court forbids phone-only appearances.

If, despite the above clear guidance, you still elect to appear remotely in Department 16 then you must appear by video using our Court's Unicorn Digital Courtroom ("UDC") system. If for whatever reason you do not like using UDC, *then come to D16 in person.*

To use UDC, click or copy and paste this link into your internet browser & scroll to Department 16: https://www.sccscourt.org/general_info/ra_teams/video_hearings_teams.shtml
When using UDC you must *separately register for each case* in which you appear remotely. If you find UDC too cumbersome, *then come to D16 in person.*

Proposed Orders filed by counsel after the hearing must include the Judicial Council Form EFS-020 Proposed Order Cover Sheet.

LINE	CASE NO.	CASE TITLE	TENTATIVE RULING
9:01 1	22CV393909	<i>Sutter Bay Hospitals, et al.</i> <i>v.</i> <i>HCA Health Services of California, Inc., et al.</i>	Hearing on Verified Application of Stone T. Hendrickson to appear <i>pro hac vice</i> for Cross-Defendant Health Net of California, Inc. The Verified Application of Stone T. Hendrickson to appear <i>pro hac vice</i> for Cross-Defendant Health Net of California, Inc. is well supported and complies with California Rule of Court 9.40. Accordingly, the Verified Application is GRANTED in all respects. After this hearing, the Court will sign and file the Proposed Order that was filed with this Application. SO ORDERED
9:01 2			
9:01 3			
9:01 4			
9:01 5			
9:00 1	25CV472081	<i>Shaun Allen Laliberte, et al.</i> <i>v.</i> <i>F.S. Trucking Company, et al.</i>	Order on Defendant City of San Jose's Demurrer to Plaintiffs' Complaint <i>See Line 1 below for complete tentative ruling.</i> After the hearing, the Court will prepare and file the formal Order.

9:00 <u>2</u>	21CV388088	<i>Heather Rhines</i> v. <i>Michael H. Scott, et al.</i>	Order on Defendant Sierra Corporate Management, Inc.'s Motion to Compel Further Responses to RFPs, Set One, and for Sanctions In light of the Notice of Settlement of Entire Case filed by Plaintiff on the eve of trial on September 8, 2026, this Motion is OFF CALENDAR . SO ORDERED.
9:00 <u>3</u>	24CV442743	<i>MV Campbell, LLC</i> v. <i>MOD Super Fast Pizza (California), LLC, et al.</i>	Order on Plaintiff's Motion to Compel Defendants to Respond to Plaintiff's Discovery Requests and for Sanctions See Line 3 below for complete tentative ruling. After the hearing, the Court will prepare and file the formal Order.
9:00 <u>4</u>	24CV436896	<i>Hassan Abpikar, et al.</i> v. <i>State Farm Insurance, et al.</i>	Order on Defendant State Farm General Insurance Company's Motion for Terminating Sanctions Or, Alternatively, Issue and Monetary Sanctions See Line 4 below for complete tentative ruling. After the hearing, the Court will prepare and file the formal Order.

9:00 5	24CV453950	<i>Brett Johnson</i> <i>v.</i> <i>County of Santa Clara, et al.</i>	Order on Travelers Property Casualty Company of America's Motion for Leave to File Complaint in Intervention <i>See Line 5 below for complete tentative ruling.</i> After the hearing, the Court will prepare and file the formal Order.
9:00 6			
9:00 7			
9:00 8			
9:00 9			
9:00 10			
9:00 11			
9:00 12			
9:00 13			
9:00 14			
9:00 15			

Line 1

Case Name: *Shaun Allen Laliberte, et al. v. F.S. Trucking Company, et al.*

Case No.: 25CV472081

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Defendant City of San Jose (“Defendant” or “City”) demurs to the Complaint of Plaintiffs Shaun Allen Laliberte, individually and as successor in interest to Edward Alan Kirk, and Jacqueline Marie Kirk, individually and as successor in interest to Edward Alan Kirk (“Plaintiffs”) on its Third Cause of Action for Dangerous Condition of Public Property and Wrongful Death and the Fourth Cause of Action for Violation of Government Code Section 815 *et seq.* and Wrongful Death on the grounds that these causes of action are uncertain, ambiguous, and unintelligible, and fail to state facts sufficient to constitute a cause of action against the City. Code Civ. Proc. § 430.10(e)-(f). Notice of Demurrer (the “Demurrer”) at 1:28-2:6 (filed: July 28, 2026).¹

The Demurrer came on for hearing on September 11, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

Fact Allegations & Procedural Background

Plaintiffs bring this action individually and as successor in interest to Edward Alan Kirk (“Decedent”). Decedent is Plaintiffs’ biological father. (Complaint, ¶¶ 1-2.) Plaintiffs name the following defendants: F.S. Trucking Company, Inc. (“FS Trucking”); Daniel Bonilla Estacio (“Estacio”); Martinez Granite & Marble, Inc. (“G&M”); Mauro Gaytian Martinez (“Martinez”); Francisco Martinez Antonio (“Antonio”); the City; County of Santa Clara (“the County”); State of California (“the State”); State of California Department of Transportation (“DoT”); Caltrans (the City, the County, the State, DoT, and Caltrans are collectively referred to as “Government Defendants”); Jayden Rowedda (“Rowedda”); and Edward Kirk Jr. (“Edward Jr.”) (collectively with Rowedda, “Nominal Defendants”). According to the allegations of the complaint, Decedent was killed in San Jose on August 29, 2024, when two vehicles, operated by Estacio and Martinez respectively, struck Decedent’s motorcycle (“Subject Crash”). (Complaint, ¶¶ 20-21.) Estacio was operating a vehicle in the course and scope of his employment with FS Trucking. (Complaint, ¶ 22.) Martinez was operating a separate vehicle in the course and scope of his employment with G&M, owned by Antonio. (Complaint, ¶ 23.)

On August 4, 2025, Plaintiffs initiated this action by filing the Complaint, asserting

¹ The Third and Fourth Causes of Action are the only causes of action in the Complaint that are made against Defendant City of San Jose.

the following claims:

- 1) Motor Vehicle Negligence and Wrongful Death [against FS Trucking, Estacio, Martinez, G&M, and Antonio];
- 2) Negligent Entrustment of a Motor Vehicle and Wrongful Death [against FS Trucking, G&M, and Antonio];
- 3) Dangerous Condition of Public Property and Wrongful Death [against Government Defendants] (the “Third Cause of Action”);
- 4) Violation of Government Code section 815, et seq. and Wrongful Death [against Government Defendants] (the “Fourth Cause of Action”); and
- 5) Declaratory Relief [against Nominal Defendants].

On July 28, 2026, the City filed a Demurrer to the complaint. Plaintiff opposes the demurrer and the City filed a reply.

Analysis of the Demurrer

I. Legal Standard on Demurrer

“The party against whom complaint or cross-complaint has been filed may object, by demurrer or answer as provided in [Code of Civil Procedure] section 430.30, to the pleading on any one or more of the following grounds: . . . (e) The pleading does not state sufficient facts to constitute cause of action, (f) The pleading is uncertain.” (C.C.P. § 430.10(e) & (f).)

A demurrer may be used by “[t]he party against whom complaint has been filed” to object to the legal sufficiency of the pleading as whole, or to any “cause of action” stated therein, on one or more of the grounds enumerated by statute. (C.C.P. §§ 430.10 & 430.50(a).)

In ruling on a demurrer, the Court treats it “as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” (*Piccinini v. Cal. Emergency Management Agency* (2014) 226 Cal.App.4th 685, 688, citing *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318 (*Blank*).)

“A demurrer tests only the legal sufficiency of the pleading. It admits the truth of all material factual allegations in the complaint; the question of plaintiff’s ability to prove these allegations, or the possible difficulty in making such proof does not concern the reviewing court.” (*Committee on Children’s Television, Inc. v. General Foods Corp.* (1983) 35 Cal.3d 197, 213-214.)

Courts “give the complaint a reasonable interpretation, reading it as a whole and its parts in their context.” (*Goncharov v. Uber Techs., Inc.* (2018) 19 Cal. App. 5th 1157, 1165.) Courts “construe the complaint ‘liberally ... with a view to substantial justice between the parties[.]’” (*Id.*) “A demurrer must dispose of an entire cause of action to be sustained.” (*Fremont Indem. Co. v. Fremont Gen. Corp.* (2007) 148 Cal. App. 4th 97, 119.) Under Code. Civ. Proc. § 430.10(f), a demurrer may also be sustained if a

complaint is uncertain i.e., ambiguous and unintelligible. Demurrers for uncertainty are granted only if the pleading is so incomprehensible that a defendant cannot reasonably respond. A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures. (See, *A.J. Fistes Corp. v. GDL Best Contractors, Inc.* (2019) 38 Cal.App.5th 677, 695; internal citation and quotes omitted.)

Even if a demurrer is sustained, leave to amend the complaint is routinely granted under California law. “Liberality in permitting amendment is the rule, if fair opportunity to correct any defect has not been given.” (*Angie M. v. Superior Court* (1995) 37 Cal. App. 4th 1217, 1227.) “Unless the complaint shows on its face that it is incapable of amendment, denial of leave to amend constitutes an abuse of discretion, irrespective of whether leave to amend is requested or not.” (*McDonald v. Sup. Ct. (Flintkote Co.)* (1986) 180 Cal. App. 3d 297, 303-304.)

II. Demurrer to the Third Cause of Action

The City demurs to the Third Cause of Action on the grounds that it is uncertain under Section 430.10(f) and also fails to state facts sufficient to constitute a cause of action under Section 430.10(e). Demurrer at 1:28-2:6. The Court will now analyze each of these independent grounds in turn.

A. The Third Cause of Action is not uncertain under C.C.P. § 430.10(f).

“[D]emurrers for uncertainty are disfavored, and are granted only if the pleading is so incomprehensible that the defendant cannot reasonably respond.’ ‘A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures.’” (*A.J. Fistes Corp. v. GDL Best Contractors, Inc.* (2019) 38 Cal.App.5th 677, 695 [internal citations omitted].)

Here, while the Third Cause of Action is not a model of clarity, the Court finds that it is not uncertain within the meaning of Section 430.10(f) because it is not so incomprehensible that the City cannot reasonably respond to it. The City responds to it quite well. While the City vigorously disagrees with the Third Cause of Action, the City understands what the Third Cause of Action alleges against the City. Hence, there is no uncertainty.

Accordingly, the Demurrer to the Third Cause of Action under Code of Civil Procedure Section 430.10(f) on the ground it is uncertain is **OVERRULED**.²

² For the same reasons, the Court OVERRULES the City’s Demurrer to the Fourth Cause of Action on the ground that it is uncertain.

B. The Complaint fails to plead sufficient facts to constitute the Third Cause of Action under C.C.P. § 430.10(e).

A separate and distinct ground for its Demurrer that the City asserts is that the Complaint fails to allege sufficient facts to constitute a cause of action. The City points out that the Third Cause of Action is alleged in a conclusory matter and does not identify what act or omission by any public employee allegedly created what physical condition of the property or how that condition caused Decedent's collision. (Demurrer, p. 6: 25-28.) In Opposition, Plaintiffs argue they have alleged specifically and generally the relevant dangerous condition. (Opposition, p. 5:17-22.)

“[A] public entity is not liable for injuries except as provided by statute (Gov. Code § 815) and . . . section 835 sets out the exclusive conditions under which a public entity is liable for injuries caused by a dangerous condition of public property.” (*Metcalf v. County of San Joaquin* (2008) 42 Cal.4th 1121, 1129 (*Metcalf*) [citation omitted].) “To state a cause of action [against a government entity] every fact essential to the existence of statutory liability must be pleaded with particularity, including the existence of a statutory duty.” (*Searcy v. Hemet Unified School Dist.* (1986) 177 Cal.App.3d 792, 802.)

Further, “a claim alleging a dangerous condition may not rely on generalized allegations but must specify in what manner the condition constituted a dangerous condition. A plaintiff's allegations, and ultimately the evidence, must establish a physical deficiency in the property itself. A dangerous condition exists when public property is physically damaged, deteriorated, or defective in such a way as to foreseeably endanger those using the property itself, or possesses physical characteristics in its design, location, features or relationship to its surroundings that endanger users.” (*Cerna v. City of Oakland* (2008) 161 Cal.App.4th 1340, 1347-1348 [internal citations and quotations omitted]; see also *Cole v. Town of Los Gatos* (2012) 205 Cal.App.4th 749, 759 [“To establish a qualifying condition, the plaintiff must point to at least one physical characteristic of the property.”][Internal citations omitted].)

Here, the Complaint alleges that the Government Defendants, which include the City, owned, controlled, maintained, etc., the area where the Subject Crash occurred “so that the roadway created an unanticipated and dangerous area where views of the entire roadway are limited and/or blocked and creates hazards in the roadway area that constitutes a danger and a trap for unwary motorists (such as Decedent).” (Complaint, ¶ 50.) The Complaint further alleges that the “trap” was caused by the “lack of placement of the safety measures and lack of proper controls and/or markings and/or warnings at or leading up to this area of the roadway and the inclined/declined condition of the land/the offsets (including those caused by the railroad tracks).” (Complaint, ¶ 51.) Paragraph 51 additionally lists other issues with the road that posed substantial danger and that were known to the Government Defendants, such as a lack of warning signs indicating holes or uneven features of the road or the narrow lanes. (*Id.*)

In this case, Plaintiffs allege physical characteristics of the street such as blocked views, holes in the road, narrow or improperly sized lanes, slippery roadway, and other issues caused by railroad tracks that constituted concealed dangers/traps. Thus, in some

respects the Complaint does allege several *possible* roadway conditions. But that said, given that this is a claim against government entities, the pleading needs to specifically plead in what manner a *specific condition* constituted a dangerous condition—and *this Complaint fails to do so*. (See e.g., *Mittenhuber v. City of Redondo Beach* (1983) 142 Cal.App.3d 1, 7; *Shields v. County of San Diego* (1984) 155 Cal.App.3d 103, 113 [“because recovery is based on a statutory cause of action, the plaintiff must set forth facts in his complaint sufficiently detailed and specific to support an inference that each of the statutory elements of liability is satisfied. General allegations are regarded as inadequate.”].)

Accordingly, the Demurrer to the Third Cause of Action under Code of Civil Procedure Section 430.10(e) on the ground it fails to state facts sufficient to constitute a cause of action is **SUSTAINED**.

That said, in light of the liberality of California law permitting amendment to an initial complaint (like we have here) when a demurrer has been sustained (*Angie M.*, 37 Cal. App. 4th at 1227), the Court will give Plaintiffs this one fair opportunity to amend the Complaint to try to remedy the pleading deficiencies identified in this Order above regarding the Third Cause of Action. Accordingly, the Court gives Plaintiffs **LEAVE TO AMEND** the Complaint **within 15 days of today**.

C. The Complaint fails to plead sufficient facts to constitute the Fourth Cause of Action under C.C.P. § 430.10(e).

Just like it did regarding the Third Cause of Action, the City asserts that Complaint fails to allege sufficient facts to constitute the Fourth Cause of Action. (Demurrer, p. 9:6-7.) The City points out that the Complaint does not identify a specific public employee act or omission that caused Decedent’s crash. (*Id.* at p. 9:1-2.)

In Opposition, Plaintiffs contend that because the fourth claim incorporates the prior allegations, it is sufficiently pleaded. (Opposition, p. 7:20-23.)

“Except as otherwise provided by statute . . . [a] public entity is not liable for an injury, whether such injury arises out of an act or omission of the public entity or a public employee or any other person.” (Gov. Code § 815(a).) Here, after reviewing the pleading, the papers, and the record, the Court finds that the pleading is deficient because the Fourth Cause of Action relies on the same insufficient fact allegations as does the Third Cause of Action.

Accordingly, for the same reasons discussed in detail above on why the Court sustains the Demurrer on the Third Cause of Action, the Court also **SUSTAINS** the Demurrer to the Fourth Cause of Action under Code of Civil Procedure Section 430.10(e) on the ground it fails to state facts sufficient to constitute a cause of action. Likewise, the Demurrer is **SUSTAINED with LEAVE TO AMEND within 15 days of today**.

Conclusion & Order

For all the reasons explained above, the Demurrer of Defendant City of San Jose to Plaintiffs' Complaint on its Third Cause of Action for Dangerous Condition of Public Property and Wrongful Death and on its Fourth Cause of Action for Violation of Government Code Section 815 *et seq.* and Wrongful Death is **SUSTAINED with LEAVE TO AMEND within 15 days of today.**

SO ORDERED.

Date: September 11, 2026

Vincent I. Parrett
Judge of the Superior Court of California,
County of Santa Clara

Line 2

Case Name: *Heather Rhines v. Michael H. Scott, et al.*

Case No.: 21CV388088

See ORDER above. (In light of the **Notice of Settlement of Entire Case** filed by Plaintiff on the eve of trial on September 8, 2026, this Motion is **OFF CALENDAR.**)

Line 3

Case Name: *MV Campbell, LLC v. MOD Super Fast Pizza (California), LLC, et al.*

Case No.: 24CV442743

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Plaintiff MV Cambell, LLC (“Plaintiffs”) moves under Code of Civil Procedure Sections 2030.290(b) and 2031.300(b) to compel Defendants MOD Super Fast Pizza (California) and Mod Super Fast Pizza, LLC (“Defendants”) to respond to Plaintiff’s Specially Prepared Interrogatories, Set One (“Special Interrogatories”), and Plaintiff’s Request for Production of Documents, Set Two (“RFPs”). Notice of Motion (the “Motion”) at 2:2-15 (filed: Jan. 29, 2026). Moreover, Plaintiff moves for sanctions under Code of Civil Procedure Section 2030.290(c) in the amount of \$1,960.00 for Plaintiff’s attorneys’ fees and costs for this Motion. *Id.* at 2:16-20.

The Motion came on for hearing on September 11, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

On November 21, 2025, Plaintiff properly served Defendants with Plaintiff’s Code-Compliant RFPs. Declaration of attorney Karsyn Stewart In Support of Motion (“Stewart Decl.”) at ¶¶ 4, 7. And on November 26, 2025, Plaintiff properly served Defendants with Plaintiff’s Code-Compliant Special Interrogatories, Set One. *Id.* at ¶¶ 3, 6.

Under California law, Defendants had a clear duty to provide timely, Code-Compliant responses to these discovery requests.

To be timely, Defendants’ responses to the RFPs were due within 30 days after service of them on Defendants on November 21, 2025. C.C.P. § 2031.260. Likewise, Defendants’ responses to the Special Interrogatories were due within 30 days after service of them on Defendants on November 26, 2025. C.C.P. § 2030.260

To be Code Compliant, Defendants’ responses must:

- For these Special Interrogatories, comply with Code of Civil Procedure Sections 2030.210 & 2030.220 by providing answers to each interrogatory that are as complete and straightforward as the information reasonably available to Defendants permits; C.C.P. §§ 2030.210 & 2030.220; *and*
- For these RFPs, comply with Code of Civil Procedure Sections 2031.210-2031.230 by stating:

(a) Defendants will comply with the RFPs—*and* then produce the documents and items requested;

(b) Defendants are unable to comply with the RFP because the requested documents and items have never existed; or

(c) after diligent search and reasonable inquiry, Defendants are unable to comply because the requested documents and items no longer exist or are no longer in his possession.

C.C.P. §§ 2031.210, 2031.220, 2031.230.

Now, more than 9 months after these Special Interrogatories and RFPs were served on Defendants, it is undisputed that Defendants have not provided timely, Code-Compliant responses; indeed, Defendants have not responded to these discovery requests at all. Stewart Decl. at ¶¶ 5, 8. And Defendants ignored Plaintiff's good-faith attempts to meet and confer to resolve this discovery dispute. *Id.* at ¶ 9.

Because Defendants violated their duty to provide timely, Code-Compliant responses to these discovery requests, Plaintiff asserts that Plaintiff is entitled now to an Order:

- Ruling that Defendants have waived all objections to these Special Interrogatories and RFPs, including those based upon privilege or work product protection, under Code of Civil Procedure Sections 2030.290(a) and 2031.300(a);
- Compelling Defendants to provide Verified Responses to the Special Interrogatories and RFAs, including all responsive documents that are in Defendants' possession, custody, or control; and
- Awarding Sanctions against Defendants in the amount of \$1,960.00 for Plaintiff's reasonable attorneys' fees and costs incurred for this Motion.

Pl. Memorandum of Points & Authorities in Support of Motion at 5:4-6:23.

Defendants do not argue otherwise. Indeed, Defendants have not opposed the Motion at all, which the Court views as Defendants conceding the Motion in its entirety. *D.I. Chadbourne, Inc. v. Super. Ct.* (1964) 60 Cal.2d 723, 728, fn. 4.; California Practice Guide: Civil Procedure Before Trial ¶ 9:105.10, Ch. 9 at pp. 94-95 (failure to file opposition papers to motion is treated "as an admission that the motion is meritorious") (Weil & Brown, The Rutter Group, 2025 Ed.); *see also* Rule of Court 8.54(c): "A failure to oppose a motion may be deemed a consent to the granting of the motion." CRC Rule 8.54(c).

The Court further notes that Plaintiff's request for monetary sanctions against Defendants in the total amount of \$1,960.00 for Plaintiff's attorneys' fees and expenses

incurred in making this Motion is well supported (Stewart at ¶¶ 12-13), reasonable in all respects,³ and authorized by law under Code of Civil Procedures §§ 2030.290(c), 2031.300(c), and 2023.010(d).

Accordingly, the Court **GRANTS** the Motion in all respects. Specifically, the Court **ORDERS that within 30 days of today:**

- (1) Defendants will provide full and complete Code-Compliant responses to: (1) Plaintiff's Specially Prepared Interrogatories, Set One; and (2) Plaintiff's Request for Production of Documents, Set Two, *and* will produce all the requested documents that are responsive to those discovery requests;⁴ and
- (2) Defendants will pay Plaintiff \$1,960.00 for Plaintiff's reasonable attorneys' fees and costs for this Motion.

Defendants are further put on **NOTICE** that if they fail to comply with this Order within 30 days of today, they may be subject to further escalating monetary and non-monetary sanctions including but not limited to issue, evidentiary, and terminating sanctions.

SO ORDERED.

Date: September 11, 2026

Vincent I. Parrett
Judge of the Superior Court of California,
County of Santa Clara

³ Specifically, the Court finds that the hourly rates sought and the number of hours sought for Plaintiff's attorneys' fees here, as well as the costs sought for the filing fee for this Motion, as set forth in detail in the Stewart Declaration, are reasonable in all respects.

⁴ Moreover, all objections to these Interrogatories and RFPs, including those based on privilege or work product protection, are waived by Defendants as explained above.

Line 4

Case Name: *Hassan Abpikar, et al. v. State Farm Insurance, et al.*

Case No.: 24CV436896

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Defendant State Farm Mutual Automobile Insurance Company (sued as State Farm Insurance and State Farm Insurance Agency) (“Defendant State Farm” or “Defendant”) Defendant moves under Code of Civil Procedure Section 2023.030, and the inherent power and authority of the court to manage legal proceedings, for terminating sanctions or, in the alternative, issue and monetary sanctions against Plaintiffs Hassan Abpikar and Albert Nichols (“Plaintiffs”). Notice of Motion (the “Motion”) at 2:5-9 (filed: July 22, 2025). The Motion is made on the ground that Plaintiffs have engaged in misuse of the discovery process by willfully failing to comply with the Court’s March 14, 2025 Orders to pay Defendant State Farm sanctions and to provide verified, Code-Compliant discovery responses. *Id.* at 2:9-11.

The Motion came on for hearing on September 11, 2026, at 9:00 AM in Department 16. After reviewing the moving papers, including the Declaration of Alexandria C. Carraher in Support of Defendant’s Motion (“Carraher Decl.”) plus its Exhibits and Defendant’s Separate Statement in Support of Defendant’s Motion, and the Opposition papers, including the Declaration of Hassan Abpikar in Support of Opposition plus its Exhibits,⁵ and Defendant’s Reply papers, including the Declaration of Stephanie J. Rothberg in Support of Defendant’s Reply in Support of Motion (“Rothberg Decl.”) plus its Exhibits and Defendant’s Request for Judicial Notice In Support of Defendant’s Reply in Support of Motion, and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

Relevant Facts & Procedural Posture

On April 29, 2024, Plaintiffs filed this civil action in Santa Clara County Superior Court, Case No. 24CV436896, against Defendants State Farm, American Honda Financial Corp. and GAP Insurance. Complaint (filed: Apr. 29, 2024).

⁵ The Court has received but, in the broad exercise of its discretion chooses to give no weight whatever to, the Request for Judicial Notice filed by Plaintiffs on September 9, 2026, two days before this hearing, because it is an untimely, unauthorized, and improper sur-reply brief that does not ask for Judicial Notice of any matter properly noticeable under California law but rather indulges in sustained and scurrilous *ad hominem* attacks on defense counsel, whom they call “**Mr. Honest Legal Thief . . . you are NOT even a MAN. . .**” Plaintiffs’ Request for Judicial Notice at p. 4 (emphasis in original).

On June 21, 2024, Defendant State Farm served Code-Compliant discovery requests on Plaintiffs, specifically: Form Interrogatories-General, Set One; Special Interrogatories, Set One; Request for Admissions, Set One; and Requests for Production, Set One (collectively, “Defendant’s Discovery Requests”). Carraher Decl. at ¶ 2.

The deadline for Plaintiffs to serve verified Code-Compliant responses to Defendant’s Discovery Requests was July 29, 2024, *but* Plaintiffs failed to serve any responses by that deadline. Carraher Decl. at ¶¶ 3-4.

Because Plaintiffs failed to respond to Defendant’s Discovery Requests, on September 25, 2024, Defendant filed a Motion to Compel Responses and For Sanctions against Plaintiff Hassan Abpikar, and a Motion to Compel Responses and For Sanctions against Plaintiff Albert Nichols.

Both Motions to Compel were heard before Judge Roberta Hayashi on February 26, 2025, where Plaintiffs and Defendant were given a full and fair opportunity to be heard. After considering all arguments, the Court adopted its tentative rulings Granting the Motion to Compel and for Sanctions against Plaintiff Hassan Abpikar *and* Granting the Motion to Compel and for Sanctions against Plaintiff Albert Nichols. Minute Orders at p. 1-2 (filed: Feb. 26, 2025).

The formal written Orders Granting these Motions to Compel and for Sanctions were filed and served by the Clerk of the Court on all parties on March 14, 2025. Order Granting State Farm’s Motion to Compel Plaintiff Hassan Abpikar to Respond to Discovery and for Sanctions at p. 1 (filed: March 14, 2025); Order Granting State Farm’s Motion to Compel Plaintiff Albert Nichols to Respond to Discovery and for Sanctions at p. 1 (filed: March 14, 2025) (collectively, the “March 14, 2025 Orders”).

The March 14, 2025 Orders were crystal clear:

As to Plaintiff Abpikar, “the Court hereby orders that in not more than twenty (20) days from Notice of entry of Order, Plaintiff Abpikar shall file and serve, without any objections being asserted thereto, fully code-compliant responses to Defendant’s Discovery Requests, which have been verified under penalty of perjury by Plaintiff Abpikar. . . . [A]ttorneys’ fees and costs for the preparation, filing and briefing of this motion shall be paid by Plaintiff Abpikar to Defendant’s counsel in the amount of \$2,715. . . Failure to comply with this Order of the Court may result in further sanctions, including . . . terminating sanctions[.]” Order Granting State Farm’s Motion to Compel Plaintiff Hassan Abpikar to Respond to Discovery and for Sanctions at 2:22-25, 3:3-7.

As to Plaintiff Nichols, “the Court hereby orders that in not more than twenty (20) days from Notice of entry of Order, Plaintiff Nichols shall file and serve, without any objections being asserted thereto, fully code-compliant responses to Defendant’s Discovery Requests, which have been verified under penalty of perjury by Plaintiff Nichols. . . . [A]ttorneys’ fees and costs for the preparation, filing and briefing of this motion shall be paid by Plaintiff Nichols to Defendant’s counsel in the amount of \$2,165. . . Failure to comply with this Order of the Court may result in further sanctions,

including . . . terminating sanctions[.]” Order Granting State Farm’s Motion to Compel Plaintiff Albert Nichols to Respond to Discovery and for Sanctions at 2:12-16, 2:22-24, 3:1-2.

In this Motion, Defendant State Farm asserts that Plaintiffs violated the March 14, 2025 Orders in multiple ways: by failing to pay the court-ordered sanctions, by failing to verify under penalty of perjury any of their discovery responses, *and* by failing to serve Code-Compliant responses for reasons set forth in detail—discovery response by discovery response—in Defendant’s Separate Statement in Support of Motion for Terminating Sanctions at 2:2-53:1; *see also* Carraher Decl. at ¶¶ 14-29 & Ex. C thereto (setting forth multiple examples why Plaintiff’s March 17, 2025 responses were not Code Compliant); Rothberg Decl. at ¶4 (“the responses were unverified and failed to comply with the Code. Moreover, both Plaintiffs failed to pay State Farm sanctions pursuant to the Court’s orders.”).

On May 6, 2025, Defendant State Farm sent a meet and confer letter to Plaintiffs regarding their non-Code-Compliant, unverified discovery responses and failure to pay the Court-Ordered sanctions. Carraher Decl. at ¶¶ 25. Plaintiffs failed to respond. *Id.*

Next, on July 22, 2025, Defendant State Farm filed this Motion for Terminating Sanctions because Plaintiffs willfully ignored the March 14, 2025 Orders by failing to pay the Court-Ordered sanctions, by failing to verify their discovery responses, and by failing to provide Code-Compliant responses. Motion at 2:10-11. The Motion was initially set for hearing on February 20, 2026.

Having been served with the Motion on July 22, 2025, two days later on July 24, 2025, Plaintiffs filed a Request for Dismissal of the entire action without prejudice. Request for Dismissal (filed: July 24, 2025). The Clerk entered dismissal on that date, July 24, 2025, and took the Motion set for February 20, 2026 off calendar.

Next, on January 30, 2026, Defendant Farm filed an ex parte application to restore its Motion for Terminating Sanctions on the ground that Plaintiffs filed the July 24, 2025 Request for Dismissal to evade compliance with their Court-Ordered discovery obligations and to evade paying the Court-Ordered sanctions. Ex Parte Application at 2:14-15 (filed: Jan. 30, 2026). In light of the well-established law that plaintiffs cannot defeat the trial court’s power to enforce its discovery orders by dismissing their case, the Court granted this ex parte application in an order signed and dated by the undersigned Judge on February 9, 2026, and filed by the Clerk on February 13, 2026, which set the hearing on this Motion for July 31, 2026. Order Granting Defendant’s Ex Parte Application to Restore Motion for Terminating Sanctions To New Hearing date (filed: Feb. 13, 2026).

On February 12, 2026, Plaintiff Abpikar filed a petition for bankruptcy. Rothberg Decl. ¶ 7.

Next, on February 25, 2026, Plaintiff Abpikar filed an ex parte application to vacate the “void order” that set this Motion for July 31, 2026, on the grounds that there was a bankruptcy stay. Ex Parte Application at p. 1 (filed: Feb. 25, 2026).

The next day on February 26, 2026, the Court DENIED Plaintiff's ex parte application, explaining in detail why "its Order effective *nunc pro tunc* February 9, 2026" was *not* void. Order Denying Ex Parte Application at 1:19-4:10 (filed: Feb. 26, 2026). Still, to be fair to all sides and to show comity to the federal system, the Court in the exercise of its discretion in this same Order chose to vacate without prejudice the July 31, 2026 hearing date on this Motion while making clear: "If and when the stay is lifted, State Farm is free to request a new hearing date on its Motion for Terminating Sanctions." *Id.* at 4:16-17

On March 26, 2026, Plaintiff Abpikar's bankruptcy action was dismissed. Rothberg Decl. at ¶ 9 and Ex. B thereto (dismissal of Abpikar's bankruptcy action).

The bankruptcy stay having been lifted, State Farm made an ex parte application on July 28, 2026 to reset the hearing on its Motion for Terminating Sanctions, which the Court granted in its Order filed and served on all parties on August 6, 2026, which gave notice to all that this Motion for Terminating Sanctions would be held today on September 11, 2026 at 9:00 AM in Department 16.

The day after Defendant State Farm on July 28, 2026 filed its ex parte application to reset the hearing on this Motion, Plaintiff Abpikar on July 29, 2026 filed another Notice of Bankruptcy Stay, on the grounds that he had filed yet another petition for bankruptcy on July 24, 2026. Notice of Bankruptcy Stay (filed: July 29, 2026); Rothberg Decl. at ¶ 11.

On August 5, 2026, Plaintiff Abpikar filed in federal bankruptcy court an Emergency Motion to Extend the Automatic Stay, which the federal court *denied* on August 10, 2026. Rothberg Decl. at ¶12 and Ex. C thereto (order denying Abpikar's request for an extension of the stay).

Legal Standards on Motion for Terminating Sanctions

Under Code of Civil Procedure Section 2023.010(g), "misuse of the discovery process" is "disobeying a court order to provide discovery." C.C.P. § 2023.010(g).

Under Code of Civil Procedure Section 2023.030(d)(3), "the court, after notice to any affected party, person, or attorney, and after opportunity for hearing, may impose the following sanctions against anyone engaging in conduct that is a misuse of the discovery process. . . . (d) The Court may impose a terminating sanctions by one of the following orders: . . . (3) An order dismissing the action[.]" C.C.P. § 2023.030(d)(3).

Likewise, Code of Civil Procedure Section 2030.290(c), specifically in the context where a court grants an order compelling discovery responses, provides: "If a party then fails to obey an order compelling answers, the court may make those orders that are just, including the imposition of . . . a terminating sanction (commencing with Section 2023.010))." C.C.P. §2030.290(c).

"The power to impose discovery sanctions is a broad discretion subject to reversal

only for arbitrary, capricious, or whimsical action.” *R.S. Creative, Inc. v. Creative Cotton, Ltd.* (1999) 75 Cal. App. 4th 486, 496. Imposing terminating sanctions against Plaintiffs is appropriate where the Court find three facts:

Fact No. 1: Plaintiffs failed to comply with a Court Order for discovery;

Fact No. 2: The failure was willful;

Fact No. 3: Lesser sanctions like issue or evidentiary sanctions would not bring about compliance by Plaintiffs with their discovery obligations.

R.S. Creative, Inc., 75 Cal. App. 4th at 496-497; *see also Doppes v. Bentley Motors, Inc.* (2009) 174 Cal. App. 4th 967, 992-996 (abuse of discretion for court to *deny* terminating sanctions for serious discovery abuse including failure to comply with discovery orders).

Defendant State Farm’s Request for Judicial Notice

In support of its Motion for Terminating Sanctions, Defendant State Farm requests that the Court take Judicial notice under Evidence Code Sections 452(d) and 453, and California Rules of Court, Rule 3.1306(c), of the following four records of courts of record of the United States:

1. Bankruptcy Docket, *In re Hassan Abpikar*, U.S. Bankruptcy Court (N.D. Cal) Case No. 5:26BK50218.
2. Order of Dismissal, *In re Hassan Abpikar*, U.S. Bankruptcy Court (N.D. Cal.) Case No. 5:26BK 50218.
3. Exhibit 3: Bankruptcy Docket, *In re Hassan Abpikar*, U.S. Bankruptcy Court (N.D. Cal.) Case No. 26-51150.
4. Exhibit 4: Order Denying Motion to Extend Automatic Stay, *In re Hassan Abpikar*, U.S. Bankruptcy Court (N.D. Cal.) Case No. 5:26BK-51140.

Def. Request for Judicial Notice in Support of Reply in Support of Motion at 1:25-2:8.

In the broad exercise of its discretion, and by authority of Evidence Code Sections 452(d) and 453, the Court **GRANTS** Defendant State Farm’s Request and takes Judicial Notice of these four records of a court of record of the United States, which the Court finds is particularly appropriate here because these four documents are directly relevant to and vitiate Plaintiffs’ prime argument in their Opposition (at pp. 6-10 (filed: Aug. 21, 2026)) that a bankruptcy stay exists now that bars this Court from granting Defendant’s Motion for Terminating Sanctions now.

Analysis of the Motion for Terminating Sanctions

Resolution of this Motion is straightforward.

After carefully reviewing the record and each and every line of the discovery responses served by Plaintiffs on March 17, 2025 (Carraher Decl., Ex C., & Separate Statement in Support of Defendant’s Motion), and in the broad exercise of its discretion, the Court finds regarding **Fact No. 1** that Plaintiffs failed to comply with the March 14, 2025 Orders in multiple ways:

- By failing to pay Defendant the discovery sanctions Ordered by the Court on March 14, 2025;
- By failing to verify under penalty of perjury any of their discovery responses, *and*
- By failing to serve Code-Compliant responses; for the unverified responses that Plaintiffs did serve, they are not Code-Compliant because they are, *inter alia*, non-responsive, evasive, incomplete, and off point.

First, regarding payment of sanctions, the Court’s March 14, 2025 Orders were crystal clear: Plaintiff Abpikar was ORDERED to pay “\$2,715” for Defendant’s “attorneys’ fees and costs” for the Motion (Order against Abpikar at 3:3-5); Plaintiff Nichols was ORDERED to pay “2,165” for Defendant’s “attorneys’ fees and costs” for the Motion (Order against Nichols at 2:22-24). Plaintiffs violated those Orders by failing to pay Defendant any of those Court-Ordered sanctions. Rothberg Decl. at ¶ 22.

Second, regarding Plaintiff’s failure to provide verifications under penalty of perjury, in spite of the Court’s crystal clear Orders of March 14, 2025—“Plaintiff Abpikar shall file and serve . . . fully code-compliant responses to Defendant’s Discovery Requests, **which have been verified under penalty of perjury by Plaintiff Abpikar**” (Order against Abpikar at 2:23-25 (emphasis added)); ““Plaintiff Nichols shall file and serve . . . fully code-compliant responses to Defendant’s Discovery Requests, **which have been verified under penalty of perjury by Plaintiff Nichols**” (Order against Nichols at 2:12-16) (emphasis added))—*none* of the discovery responses of Plaintiffs were verified. Carraher Decl. ¶ 23 & Ex. C thereto (Plaintiffs’ unverified discovery responses).

And this failure by Plaintiffs to provide verification to these discovery responses as ORDERED by the Court is a serious misuse and violation of the discovery process by Plaintiffs because where, as here, a verification is required (indeed, ORDERED): “an unverified response is ineffective; **it is the equivalent of no response at all.**” California Practice Guide: Civil Procedure Before Trial at ¶ 8:1113 (emphasis added) (The Rutter Group, 2025 Ed.) (*citing Appleton v. Supr. Ct. (Cook)* (1988) 206 Cal. App. 3d 632, 636).

Third, regarding Plaintiffs’ failure to provide “**fully code-compliant responses** to Defendant’s Discovery Requests” as ORDERED by the Court (Order against Abpikar at 2:24 & Order against Nichols at 2:15) (emphasis added), the Court has reviewed each and every line of Plaintiffs’ discovery responses (Carraher Decl., Ex C., & Separate Statement in Support of Defendant’s Motion) and finds that they are riven and replete with multiple violations of the Code of Civil Procedure—simply put, they are not even close to being

Code-Compliant.

Here are a few examples, among many, of Plaintiffs' failure to provide Code-Compliant responses as ORDERED to Defendant's discovery responses.

Form Interrogatories. Under Code of Civil Procedure Sections 2030.210(a) and 2030.220(a)&(c), Plaintiffs had the duty to respond to each form interrogatory separately, in writing, and under oath, furnishing any and all information reasonably available to the party. But here, despite being ORDERED by the Court to provide Code-Compliant responses, Plaintiffs did not respond to the Form Interrogatories *at all* (Carraher Decl. at ¶ 16 and Ex. C thereto), thereby violating the Code of Civil Procedure and the Court's March 14, 2025 Discovery Orders.

Special Interrogatories. Under Code of Civil Procedure Sections 2030.210(a) and 2030.220(a)&(c), Plaintiffs had the duty to respond to each special interrogatory separately, in writing, and under oath, furnishing any and all information reasonably available to the party. But here, despite being ORDERED by the Court to provide Code-Compliant responses, Plaintiffs provided vague, incomplete, evasive, nonresponsive nonsense to multiple Special Interrogatories; e.g., for Plaintiff Nichols' responses to Special Interrogatories 4, 7, and 8, he copies and pasted without any differentiation responses that were off-point, off-topic, and unrelated to the request. Carraher Decl. at ¶¶ 18-19 and Ex. C at pp. 40-42. Likewise for Plaintiff Abpikar's responses to Special Interrogatories 3, 4, 7, 8, 9, 10, and 11—which were off topic and evasive. Carraher Decl. at ¶¶ 20-22 and Ex. C at pp. 3-6.

Requests for Production of Documents. Under Code of Civil Procedure Sections 2031.210-2031.230, Plaintiffs had the duty for each separate RFP to respond by stating:

(a) Defendants will comply with the RFPs—*and* then produce the documents and items responsive to each RFP;

(b) Defendants are unable to comply with the RFP because the requested documents and items have never existed; or

(c) after diligent search and reasonable inquiry, Defendants are unable to comply because the requested documents and items no longer exist or are no longer in his possession.

C.C.P. §§ 2031.210, 2031.220, 2031.230. But here, despite being ORDERED by the Court to provide Code-Compliant responses, *Plaintiffs produced no responsive documents whatever*. Carraher Decl. at ¶ 25 & Ex. C thereto. Instead, in several instances, Plaintiffs merely recite the same or substantially similar statement of facts that in most cases are not even related to the RFP. Carraher Decl. at ¶ 26 & Ex. C thereto. This is not Code-Compliant.

Requests for Admission. Under Code of Civil Procedure Sections 2033.210 and 2033.220, Plaintiffs had the duty for each RFA to answer the substance of it in a manner that is as complete and straightforward as the information reasonable available to the responding party permits; each answer shall (a) Admit so much of the matter involved in the request is true . . . (b) deny so much of the matter involved in the request as is untrue, or (c) specify so much of the matter involved in the request as to the truth of which the responding party lacks sufficient information or knowledge. C.C.P. §§ 2033.210, 2033.220. But here, despite being ORDERED by the Court to provide Code-Compliant responses, Plaintiffs failed to admit or deny the requests in a straightforward manner. Plaintiff Nichols admits things that are entirely off point; Plaintiff Abpikar responds to most RFAs by stating: “In sharp contrast to your question. . .” followed by the same recitation of the facts without clearly admitting or denying the RFA in a straightforward manner as *required by the Code*.

For all those reasons, the Court finds **Fact No. 1:** that Plaintiffs failed to comply with the Court’s March 14, 2025 Orders by failing—repeatedly and throughout their discovery responses—to provide Code-Compliant responses.

Regarding **Fact No. 2**, on whether Plaintiffs’ failure to comply was willful, the Court, after reviewing every one of Plaintiffs’ discovery responses—in which the Court finds a glaring pattern and practice of serial discovery violations by Plaintiffs where they fail repeatedly and deliberately and evasively to provide Code-Compliant responses in spite of being directly ORDERED to do so by the Court—*plus* taking into account that Plaintiffs violated the Court’s Order by failing to pay the sanctions, *plus* failed to provide any verifications for any of the discovery responses despite being directly ORDERED by the Court to do so, which is *the equivalent of no response at all*—the Court finds as a matter of fact that Plaintiff Abpikar and Plaintiff Nichols violation of the Court’s March 14, 2025 Orders was ***willful***.

So in the broad exercise of its discretion, the Court reasonably infers that Plaintiffs’ failure to comply with the March 14, 2025 Orders was willful from their pattern and practice of serial violations of that Orders identified in detail above.

Regarding **Fact No. 3**, whether imposition of lesser sanctions like issue or evidentiary sanctions would bring about compliance by Plaintiffs with their discovery obligations, the Court finds as a matter of fact that, unfortunately, lesser sanctions would *not* bring about Plaintiffs’ compliance in this case. The Court’s review of the voluminous record of Plaintiffs’ serial evasions and violations of the Court’s Order shows beyond any doubt that because Plaintiffs have failed to respond to such a broad range of authorized discovery requests on multiple issues in this case—despite being directly ORDERED to do so by the Court—that if the Court were now to impose lesser issue or evidentiary sanctions against Plaintiffs for their multiple, comprehensive, repeated discovery violations, it would not bring about their compliance—*because there would be almost nothing left of the case*. There would be few if any issues left to litigate; there would be little if any evidence that Plaintiffs could present to the jury at trial. So, given these extreme circumstances, imposing issue or evidentiary sanctions would *not* bring about Plaintiffs’ compliance but would rather end the case.

So, based on its review of all the record here, and in the broad exercise of its discretion, the Court finds as a matter of fact that lesser sanctions like issue or evidentiary sanctions would not bring about compliance by Plaintiffs with their discovery obligations.

Having now found based on its detailed review of the record these three facts—

Fact No. 1: Plaintiff failed to comply with a Court Order for discovery;

Fact No. 2: The failure was willful; and

Fact No. 3: Lesser sanctions like issue or evidentiary sanctions would not bring about compliance by Plaintiffs with their discovery obligations—

the Court has clear authority and broad discretion to impose terminating sanctions to dismiss this case with prejudice now, *R.S. Creative, Inc.*, 75 Cal. App. 4th at 496-497, which operates as a judgment of dismissal on the merits, which is res judicata and bars any later lawsuit by Plaintiffs on the same causes of action. California Practice Guide: Civil Procedure Before Trial at ¶ 8:2340 (The Rutter Group, 2025 Ed.) (*citing Kahn v. Kahn* (1977) 68 Cal. App. 3d 372, 381-382).

While Plaintiffs argue that the Court has no jurisdiction to impose terminating sanctions for violating the Court’s March 14, 2025 Discovery Orders because Plaintiffs filed a request to dismiss this case without prejudice on July 24, 2025 (Opposition at p. 2, ¶ 1), that argument fails because, as held by the Second District Court of Appeal, “plaintiff[s] cannot defeat a defendant’s right to obtain a determination on the merits simply by filing a voluntary dismissal when statutory authority entitles the defense to a final judgment. It follows that [plaintiffs] cannot [defendant’s] motion for a terminating discovery sanction by filing a voluntary dismissal.” *Hartbrodt v. Burke* (1996) 42 Cal. App. 4th 168, 176.

As for Plaintiffs argument that the entire current proceeding on this Motion is void and of no legal effect because Plaintiff Abpikar filed for bankruptcy on July 24, 2026 (Opposition at p. 2, ¶ 5), that argument fails for two independent reasons:

First, an automatic stay triggered when an individual files for Chapter 13 bankruptcy is governed by 11 USCS § 362(a)(1), which provides that a bankruptcy “petition filed . . . operates as a stay . . . of a judicial, administrative, or other action or proceeding against the debtor[.]” 11 USCS § 362(a)(1). Construing that provision, the Second District Court of Appeal holds that “based on the plain language of section 362(a)(1), the automatic stay is inapplicable to superior court actions initiated by the debtor.” *Shah v. Glendale Fed. Bank* (1996) 44 Cal. App. 4th 1371, 1375. Here, as this civil action was initiated by Plaintiffs *against* State Farm, *Shah* makes clear that this superior court action has never been subject to an automatic stay under Section 362(a)(1). *Id.* So this Court’s August 6, 2026 Order granting State Farm’s ex parte application that set this hearing today for September 11, 2026 did not violate any automatic stay because there is no automatic stay that applies to this action brought by Plaintiffs.

Second, assuming arguendo that there was a bankruptcy stay triggered by Plaintiff Abpikar's July 24, 2026 bankruptcy petition that ever applied to this action—and it never did, *see Shah, supra*—any such stay has now expired. As Defendant points out in its Reply papers, because Plaintiff Abpikar has already filed for bankruptcy twice in the past year—he previously filed for Chapter 13 bankruptcy on February 12, 2026 in Case No.:26-50218 SLJ⁶ and that case was dismissed on March 26, 2026⁷—the automatic stay as to his July 24, 2026 bankruptcy terminated within 30 days, or on August 23, 2026, under the automatic termination provisions of 11 U.S.C. section 362(c)(3)(A).

Likewise, while Plaintiff Abpikar filed a “Emergency Motion to Extend the Automatic Stay” on August 5, 2026,⁸ the federal bankruptcy court Denied that Emergency Motion on August 10, 2026.⁹

Accordingly, even if an automatic stay triggered by Plaintiff Abpikar's July 24, 2026 bankruptcy filing ever applied to this action, that stay has expired.

For all those reasons, there is no stay ever applied to this action or exists now to prevent this Court today from exercising its broad discretion to impose terminating sanctions for Plaintiffs' multiple violations of this Court's March 14, 2025 Orders.¹⁰

⁶ As established by the Bankruptcy Docket of case, *In re Hassan Abpikar*, U.S. Bankruptcy Court (N.D. Cal.) Case No. 5:26BK50218, which is attached as **Ex. 1** to Defendant's Request for Judicial Notice—which the Court granted *supra*.

⁷ As established by the March 26, 2026 “Order and Notice of Dismissal For Failure to Comply” of case, *In re Hassan Abpikar*, U.S. Bankruptcy Court (N.D. Cal.) Case No. 5:26BK50218, which is attached as **Ex. 2** to Defendant's Request for Judicial Notice—which the Court granted *supra*.

⁸ As established by the Bankruptcy Docket of case, *In re Hassan Abpikar*, U.S. Bankruptcy Court (N.D. Cal.) Case No. 26-51140, which is attached as **Ex. 3** to Defendant's Request for Judicial Notice—which the Court granted *supra*.

⁹ As established by the August 10, 2026, “Order Denying Motion To Extend Automatic Stay” of case, *In re Hassan Abpikar*, U.S. Bankruptcy Court (N.D. Cal.) Case No. Case No. 26-51140, which is attached as **Ex. 4** to Defendant's Request for Judicial Notice—which the Court granted *supra*.

¹⁰ As for Plaintiffs remaining arguments in their Opposition, such as their sustained *ad hominem* attacks on defense counsel Todd Roberts (Opposition at pp. 2-6), they are so frivolous and scurrilous that the Court need not and will not address them.

Accordingly, in the broad exercise of its discretion, the Court **GRANTS** Defendant's Motion to impose terminating sanctions to dismiss this case with prejudice now.¹¹

Conclusion & Order

Based on its detailed review of the papers, the record, and all matters of which it has taken Judicial Notice, and in the broad exercise of its discretion, the Court **GRANTS** the Motion of Defendant State Farm to impose Terminating Sanctions now, thereby **DISMISSING THIS CASE WITH PREJUDICE** now.

As this operates as a Judgment of Dismissal on the Merits, Defendant State Farm is **ORDERED** to prepare and file a [Proposed] Judgment within 10 days of today.

SO ORDERED.

Date: September 11, 2026

Vincent I. Parrett
Judge of the Superior Court of California,
County of Santa Clara

¹¹ Finally, because the Court **GRANTS** Defendant's Motion for terminating sanctions, the Court in the broad exercise of its discretion need not and does not choose to reach Defendant's "alternative" arguments for issue and monetary sanctions here.

Line 5

Case Name: *Brett Johnson v. County of Santa Clara, et al.*

Case No.: 24CV453950

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Intervenor Travelers Property Casualty Company of American (“Travelers”) moves under Code of Civil Procedure section 387(a) for leave to file its Complaint in Intervention to seek to recover amounts paid by Travelers to Plaintiff Brent Johnson (“Plaintiff”) for injuries sustained by Plaintiff when his truck was rear-ended by a bus driven by a bus driver employee of Defendant County of Santa Clara. Notice of Motion (the “Motion”) at 1:22-25 (filed: March 25, 2026).

The Motion came on for hearing on September 11, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

Analysis of the Motion

Under Code of Civil Procedure Section 387(a), Travelers is entitled to intervene in this case to seek to recover amounts paid by Travelers to Plaintiff for alleged injuries to his brain, left wrist, neck, and low back when Plaintiff was involved in a motor vehicle accident when his truck was allegedly rear-ended by a bus driven by a County of Santa Clara bus driver employee in stop-and-go traffic. C.C.P. § 387(a).

Travelers has an interest in this matter within the meaning of Section 387(a) because Travelers so far has paid \$115,666.57 for the workers’ compensation claim filed by Plaintiff arising out of his injuries sustained from the motor vehicle accident here. Declaration of attorney Susan E. Kirkgaard in Support of Motion at ¶ 3 (filed: March 25, 2026). Hence, Travelers asserts that it has a direct pecuniary interest in this case and that it has made a timely application in good faith to intervene in this action. Memo. of Points & Authorities In Support of Motion at 3:1-4:27.

No party argues otherwise. Indeed, no party has opposed the Motion at all, which the Court views as all parties conceding the Motion in its entirety. *D.I. Chadbourne, Inc. v. Super. Ct.* (1964) 60 Cal.2d 723, 728, fn. 4.; California Practice Guide: Civil Procedure Before Trial ¶ 9:105.10, Ch. 9 at pp. 94-95 (failure to file opposition papers to motion is treated “as an admission that the motion is meritorious”) (Weil & Brown, The Rutter Group, 2025 Ed.); *see also* Rule of Court 8.54(c): “A failure to oppose a motion may be deemed a consent to the granting of the motion.” CRC Rule 8.54(c).

Conclusion & Order

Accordingly, as the Motion is well supported by the law of Section 387(a) and by the undisputed facts set forth in the Supporting Declaration of attorney Kirkgaard, and as it is unopposed by anyone, the Court **GRANTS Travelers' Motion for Leave to File its Complaint in Intervention**. Specifically, the Court grants Travelers Leave to File its Complaint in Intervention **within 10 days of today**.

While the Court **GRANTS** Travelers' Motion, the Court also puts all parties (which now includes Travelers) and all counsel on **NOTICE** that there will be No Continuance and No Delay of the trial in this case that is set for **October 11, 2027**, which will start on schedule. So conduct your discovery and ready for trial accordingly.

SO ORDERED.

Date: September 11, 2026

Vincent I. Parrett
Judge of the Superior Court of California,
County of Santa Clara

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